

MS.4 Where to File Directory

Before you can ask where to file, you have to answer a question most states never pose: does any building code bind this parcel? Here is how to find out, from public records you are entitled to see.

Before you use this document

This is a process reference, not legal advice. Mississippi is the hardest state in the country to write a permit guide for, because the answer genuinely changes at the county line: some counties enforce a building code and inspect your house, and others enforce none at all. Confirm every item with the office that will actually issue your permit before you rely on it.

THE QUESTION MISSISSIPPI MAKES YOU ANSWER FIRST

In most states the building code is a given and the only question is which office administers it. In Mississippi the code itself is contingent. Your parcel sits in exactly one of three situations, and which one it is determines everything else in this kit.

The three situations

Where your parcel sits	What it means for you
A — Inside a city or town that adopted a code	The municipality issues your permits and inspects. Its ordinance governs, and it may be stricter than anything the state requires. Municipal codes reach the whole area inside the corporate limits.
B — Unincorporated county that adopted a code	The county issues and inspects. Note the limit in § 19-5-9: a county's codes " <i>shall apply only to the unincorporated areas of the county.</i> " A county code never governs inside a town's limits.
C — No code adopted, or opted out	No building permit, no plan review, no inspector. This is legal and it is common. It does not mean nothing applies — see the second half of this document, and MS.2.

Why nobody can tell you the answer from your county's name

Mississippi ran **two opt-out windows**, and both are long closed. The statewide construction code law took effect **August 1, 2014**, and gave every county and every municipality within it 120 days to walk away: "*Within one hundred twenty (120) days after the provisions of this section go into effect, the board of supervisors of a county and/or the governing authorities of any municipality within a county, **upon resolution duly adopted and entered upon its minutes**, may choose not to be subject to the code requirements imposed under this section.*" That window shut at the end of November 2014 and has never reopened.

The coastal mandate had its own, earlier window. The 2006 law that put Jackson, Harrison, Hancock, Stone and Pearl River counties under emergency wind and flood requirements gave those same counties and their municipalities **sixty days** to opt out by resolution, in identical language. So even on the coast, "mandatory" is a claim to check rather than assume.

This is why a neighbor, a builder, or a search result cannot answer it for you.

The decision was a vote in a room a decade ago, recorded in a minute book, and it varies between a county and the towns inside it. The good news is that a vote entered on the minutes is a public record — and so is the code itself. You can go and look.

*Senate Bill 2378, 2014 Regular Session, Section 1(3), effective August 1, 2014, codified in Miss. Code Ann. Title 17, Chapter 2 — read as enrolled at billstatus.ls.state.ms.us. **The State confirms the deadline in its own words:** the State Fire Marshal's office states that "under Senate Bill 2378 of 2014, all counties and municipalities must enact uniform building codes unless they opt out prior to Nov. 30, 2014" (mid.ms.gov → State Fire Marshal → Mississippi Uniform Building Codes). Coastal window: House Bill 1406, 2006 Regular Session, Section 1(4), now Miss. Code Ann. § 17-2-1. County limitation: § 19-5-9. Verified August 2026.*

HOW TO ESTABLISH IT — IN FOUR CALLS AND ONE VISIT

Work these in order. Stop as soon as you get a clear written answer, and write it on the next page. The whole exercise is usually done in a morning, and it is the highest-value morning of your project.

- ☐ **Settle whether you are inside a municipality at all.** A rural mailing address often carries a nearby town's post office name while the parcel itself is in the unincorporated county. The **county tax assessor** settles it from the parcel number, and will tell you free.
- ☐ **If you are inside a town or city:** ask the **municipal clerk** whether the municipality has adopted a building code, and under which ordinance. Section 21-19-25 requires the adopted code to be "*certified to by the mayor and clerk of the municipality*" and "*filed as a permanent record in the office of the clerk.*" Ask to see the filed copy.
- ☐ **If you are in the unincorporated county:** ask the **chancery clerk**, who keeps the board of supervisors' minutes, the same question. Section 19-5-9 requires a county's adopted code to be "*certified to by the president and clerk of the board of supervisors*" and "*filed as a permanent record in the office of the clerk.*"
- ☐ **Ask the specific question nobody thinks to ask:** "Did this board adopt a resolution opting out of the State Uniform Construction Code in 2014?" — and, in the five coastal counties, "or out of the wind and flood requirements in 2006?" Both were required to be entered on the minutes, so both are findable.
- ☐ **Get it in writing.** An email from the clerk or the building official saying "no building permit is required for a single-family dwelling at parcel # ____" is worth keeping for the rest of the building's life. Your lender, your insurer, and the person who buys the house from you in twenty years will all eventually ask.
- ☐ **If a code IS enforced, ask which edition.** The statute lets a jurisdiction adopt "*one (1) of the last three (3) adopted editions*" — so neighboring counties can lawfully be on different editions of the IRC at the same time. There is no single Mississippi answer to look up.



Do not expect the State to have a list. The Insurance Department's Fire Marshal page on uniform building codes is a form for jurisdictions to *self-report* their code policy. There is no published roster of who opted out. Your county's own minute book is the record that governs.

The body that sets the statewide minimum has not set one

Both the statute and the 2014 act speak of codes "*as adopted and amended by the Mississippi Building Codes Council.*" The Council is real and its statute is unrepealed — but its authority is written as **discretionary**, and a search of the Insurance Department's adopted regulations, where a Council code would have to be filed, turns up no building-codes-council chapter, no residential code, and no adopted IRC edition at all.

Practically, that means **there is no statewide residential code edition to look up, and no statewide electrical or energy code for a site-built house.** Both reach your project only through whichever edition of the IRC your own county or city adopted — which is the question this document keeps sending you back to. If you are told "Mississippi is on the such-and-such IRC," ask the speaker which instrument adopted it.

*Miss. Code Ann. § 17-2-3(5) — the Council "shall adopt by reference and amend only one (1) of the last three (3) editions ... as **discretionary statewide minimum codes.**" The absence of any adopted code was established by enumerating the Mississippi Insurance Department's adopted regulations, including all sixteen chapters of the State Fire Marshal's Part 7, in August 2026. Note separately that the Fire Marshal has adopted the 2024 International Fire Code and International Building Code as of July 1, 2024, and that the state's modular-home rule adopts 2024 editions including the IRC and the National Electrical Code — **neither reaches a site-built one- or two-family dwelling**, and both are frequently misreported as a statewide residential adoption.*

Two things that are true even where a code IS enforced

Residential fire sprinklers are not required by the state. The statewide law adopts the IRC "*with the exception of those provisions that require the installation of a multipurpose residential fire protection sprinkler system or any other fire sprinkler protection system in a new or existing one- or two-family dwelling,*" and the Building Codes Council is separately barred from imposing one. **But your county or city still may** — the same section preserves their power to "*adopt, modify and enforce codes ..., including the adoption of codes which require the installation of fire protection sprinkler systems in any structure.*" Ask; do not assume.

A county code stops at the town line. If your parcel is inside a municipality, the county's code does not reach it, and the municipality's does — even if the county's is stricter, and even if the town has no building department of its own.

Sprinkler carve-out: SB 2378 (2014) § 1(1)(b). Council bar and the preserved local power: Miss. Code Ann. § 17-2-3(7), as amended by 2011 HB 1385. Edition choice: SB 2378 (2014) § 1(1)(a)-(b) and § 17-2-3(5). County limit: § 19-5-9.

THE OFFICES THAT DO NOT CARE WHETHER YOU HAVE A CODE

This is the half of the directory that matters most in no-code Mississippi, and the half that guides skip. A building-code opt-out is an opt-out of **the building code**. It is not an opt-out of public health law, of flood-insurance rules, of highway access rules, or of your utility's connection requirements. Each of these is a separate authority under a separate statute, and each can stop your project.

Authorities that apply regardless of your building-code status

Office	Why it can stop you
County health department (septic / onsite wastewater)	Administered through the Mississippi State Department of Health — msdh.ms.gov — usually at the county health department. On any parcel without a public sewer this is the approval to secure first , because it can determine where on the lot the house may sit, and in a no-code county it is commonly the only site inspection your build will ever receive.
Floodplain administrator	If your community takes part in the National Flood Insurance Program it administers a floodplain ordinance, and the construction-code exemptions in state law are expressly written not to touch it — <i>"the provisions of this section shall not apply to any floodplain management ordinances or regulations necessary for eligibility for the National Flood Insurance Program."</i> Ask the county or city who holds this role.
E-911 addressing	A new parcel usually needs an address assigned before a utility will set a meter or a lender will close. Normally run by the county — ask the chancery clerk or the county administrator who handles addressing.
County road department or MDOT	A new driveway tying into a county road needs the county's permission; a tie-in to a numbered state highway is MDOT's — mdot.ms.gov. Settle this before you grade, because the culvert size and apron location are theirs to specify, not yours.
Electric utility	Your power supplier — an investor-owned utility or one of Mississippi's electric cooperatives — sets its own conditions for temporary construction power and for setting the permanent meter, and those conditions apply whether or not a code does. Ask early what release or inspection they require ; in a county with no electrical inspector this is the question that most often surprises owner-builders.
Water association or rural water district	Much of rural Mississippi is served by member-owned water associations rather than a municipal system. Membership, tap fees and meter-set lead times are set by the association and are worth asking about months ahead.
Zoning office	Zoning is separate from building code, and a county or city with no building code may still have zoning — setbacks, minimum lot size, permitted uses. Ask specifically; the answer is often different from the building-code answer.

The floodplain quotation is Miss. Code Ann. § 17-2-7(5), repeated at § 17-2-9(6) — the exemptions from the state construction code are expressly written not to reach NFIP floodplain ordinances. Confirm which of the offices above apply to your parcel; several will not.

YOUR DIRECTORY — FILL THIS IN BEFORE YOU NEED IT

Start with the code-status question, because every line under it depends on the answer. Confirm each entry with the office itself rather than copying it from a search result, and note the name of the person you spoke to — in a county office, a name is worth more than a number.

CODE STATUS — the answer that governs everything else

Parcel is in (city / unincorporated county): _____

Building code enforced? YES / NO: _____ Confirmed by: _____

Code and edition enforced: _____ Confirmed in writing on: _____

BUILDING PERMIT OFFICE — municipal or county — or write NONE

Office / department: _____ Phone: _____

Website / address: _____ Spoke with: _____ Confirmed: _____

CHANCERY CLERK — board minutes, filed county code, opt-out resolution

Office / department: _____ Phone: _____

Website / address: _____ Spoke with: _____ Confirmed: _____

MUNICIPAL CLERK — ordinances and the filed municipal code

Office / department: _____ Phone: _____

Website / address: _____ Spoke with: _____ Confirmed: _____

COUNTY HEALTH DEPARTMENT — septic permit and soil evaluation

Office / department: _____ Phone: _____

Website / address: _____ Spoke with: _____ Confirmed: _____

FLOODPLAIN ADMINISTRATOR — flood zone, elevation, NFIP status

Office / department: _____ Phone: _____

Website / address: _____ Spoke with: _____ Confirmed: _____

E-911 ADDRESSING — address assignment for the new dwelling

Office / department: _____ Phone: _____

Website / address: _____ Spoke with: _____ Confirmed: _____

ROAD DEPARTMENT / MDOT — driveway tie-in and culvert

Office / department: _____ Phone: _____

Website / address: _____ Spoke with: _____ Confirmed: _____

ELECTRIC UTILITY — temporary power, permanent meter, what they require

Office / department: _____ Phone: _____

Website / address: _____ Spoke with: _____ Confirmed: _____

WATER ASSOCIATION / UTILITY — membership, tap, meter lead time

Office / department: _____ Phone: _____

Website / address: _____ Spoke with: _____ Confirmed: _____

ZONING OFFICE — setbacks, lot size, permitted use — if any

Office / department: _____ Phone: _____

Website / address: _____ Spoke with: _____ Confirmed: _____

STATE-LEVEL CONTACTS

These are stable and worth knowing. Phone numbers are left for you to confirm — a wrong number printed in a kit is worse than no number.

State agencies and what each is actually for

Agency	Why you would contact them	Website
Mississippi State Board of Contractors	Licenses residential builders, remodelers, construction managers and the electrical, plumbing, mechanical and HVAC trades. This is where you verify the license of every trade contractor you hire — required no matter how small the job is.	msboc.us
Mississippi State Department of Health	Onsite wastewater (septic) permitting and the certification of installers and evaluators; county health departments deliver the service locally.	msdh.ms.gov
Mississippi Department of Environmental Quality	Water wells and water-supply matters, and construction stormwater permitting on larger disturbances.	mdeq.ms.gov

State agencies and what each is actually for

Agency	Why you would contact them	Website
Mississippi Emergency Management Agency	State coordination for the National Flood Insurance Program — the route to community flood-map information when your local office cannot help.	msema.org
Mississippi Department of Transportation	Access and driveway permits where your property fronts a numbered state highway.	mdot.ms.gov
Mississippi Legislature	The statutes themselves, free: Title 73 Chapter 59 (residential builders), Title 17 Chapter 2 (building codes), § 19-5-9 and § 21-19-25 (county and municipal adoption). The site also carries every enacted bill, which is how the dates in this kit were checked.	legislature.ms.gov

Sources (verified August 2026). *Statewide code and its 120-day opt-out: SB 2378, 2014 Regular Session, § 1, effective August 1, 2014. Coastal counties and their 60-day opt-out: HB 1406, 2006 Regular Session, § 1, codified at Miss. Code Ann. § 17-2-1. Council editions and the sprinkler bar: § 17-2-3(5), (7), as amended by HB 1385, 2011 Regular Session. County adoption, the unincorporated-areas limit, and filing with the clerk: § 19-5-9. Municipal adoption, filing and notice: § 21-19-25. NFIP floodplain ordinances unaffected by the code exemptions: § 17-2-7(5); § 17-2-9(6). Enacted bill text was read at billstatus.ls.state.ms.us.*